

National Assembly Member Election Act, 2018

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Chapter-1

Preliminary

1. Short title and commencement: (1) This Act may be called the "National Assembly Member Election Act, 2075".

(2) This Act shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Court" means the constitutional bench of the Supreme Court pursuant to sub-section (1) of Article 137 of the Constitution.

(b) "Minority community" means ethnic, linguistic and religious groups as specified by the Government of Nepal by publishing a notice in the Nepal Gazette, remaining under clause (a) of sub-section (1) of Article 306 of the Constitution, based on the national census held immediately before the election.

(c) "Commission" means the Election Commission pursuant to Article 245 of the Constitution.

(d) "Candidate" means a person nominated as a candidate for member of the National Assembly pursuant to Section 16.

(e) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules made under this Act.

(f) "Party" means a political party registered with the Commission for the purpose of election, and the term also denotes a group of parties jointly participating in an election under a single election symbol.

(g) "Electoral college" means the electoral college pursuant to Section 4.

(h) "Election" means the election for members of the National Assembly pursuant to clause (a) of sub-section (2) of Article 86 of the Constitution, and the term also denotes a by-election held when the seat of an elected member becomes vacant.

(i) "Election Officer" means the Election Officer appointed pursuant to Section 7, and the term also denotes the Assistant Election Officer.

(j) "Election agent" means the election agent appointed pursuant to Section 29.

(k) "Voter" means the Provincial Assembly member, Chairperson and Vice-Chairperson of the Rural Municipality, and Mayor and Deputy Mayor of the Municipality whose names are included in the electoral college pursuant to Section 4.

(l) "Polling Officer" means the Polling Officer appointed pursuant to Section 10.

(m) "Ballot paper" means the ballot paper arranged for voting in an election, and the term also denotes, where voting is arranged by electronic device, the ballot paper used in such electronic device or the digital

ballot paper installed in such device.

(n) "Ballot box" means the ballot box arranged by the Commission for placing the ballot paper with the recorded vote, and the term also denotes, where voting is done by electronic device, the electronic device that records the vote cast in such a manner.

(o) "National Assembly" means the National Assembly formed pursuant to Article 86 of the Constitution.

(p) "Member" means a member of the National Assembly.

(q) "Constitution" means the Constitution of Nepal. Chapter-2

Election of Members and Election Program

3.

Election of Members: Added by Some Nepal Acts Amendment Act, 2075.(1) The electoral college formed in each Province shall, by secret ballot, elect eight members from each Province as follows for the election of members to be elected pursuant to clause (a) of sub-section (2) of Article 86 of the Constitution:- (a) three persons securing the highest number of votes on the basis of one vote each given for members representing the women group, (b) one person securing the highest number of votes on the basis of one vote given for the member representing the Dalit group, (c) one person securing the highest number of votes on the basis of one vote given for the member representing persons with disabilities or minority community, (d) three persons securing the highest number of votes on the basis of one vote each given for other members other than those mentioned in clauses (a), (b) and (c). Added by Some Nepal Acts Amendment Act, 2075.(2) Notwithstanding anything contained in sub-clauses (a) and (d) of sub-section (1), when the seat of any member elected pursuant to that clause becomes vacant for any reason and a by-election is held, or when the term as determined pursuant to sub-section (3) of Article 86 of the Constitution expires and an election is to be held for only one member of a group, one person securing the highest number of votes on the basis of one vote given by voters, from the same group and in the same manner as the person was elected, shall be elected. 4. Electoral college: (1) There shall be one electoral college consisting of the following voters in each Province:- (a) members of the concerned Provincial Assembly, (b) Chairpersons and Vice-Chairpersons of Rural Municipalities and Mayors and Deputy Mayors of Municipalities within the concerned Province. (2) Notwithstanding anything contained in sub-section (1), the electoral college shall not be prevented from being formed merely because the election of any member of the Provincial Assembly, any Chairperson and Vice-Chairperson of a Rural Municipality or Mayor and Deputy Mayor of a Municipality cannot be held or because the seat is vacant for any other reason. (3) For the purpose of sub-section (1), the Commission shall prepare and publish a voter list as prescribed, including the names of the voters currently in the electoral college. 5. Fixing date of election: (1) The Government of Nepal shall fix the date of election. Provided that, before fixing the date of election, the Government of Nepal shall consult the Commission.

Added by Some Nepal Acts Amendment Act, 2075.(1a) While fixing the date of election pursuant to sub-section (1), the date of election for the member's seat falling vacant upon the expiry of the term determined pursuant to sub-section (3) of Article 86 of the Constitution shall be fixed so that the election is held thirty-five days before the seat falls vacant. In case of a by-election due to the seat falling vacant for any other reason, the date shall be fixed so that the election is completed within thirty-five days from the date of vacancy. (2) Amended by Some Nepal Acts Amendment Act, 2075.A notice fixing the date of election pursuant to this Section shall be published in the Nepal Gazette. 6. Notice of election program: (1) After the notice fixing the date of election pursuant to Section 5 is published, the Commission shall publish a notice of

the election program. (2) The election program pursuant to sub-section (1) shall mention the dates, times and places for filing nomination papers of candidates, publishing the list of candidates whose nomination papers have been filed, filing objections against candidates, scrutiny of nomination papers, publishing the list of nominated candidates, withdrawal of names by candidates, publishing the final list of candidates, and voting. (3) The Commission shall publish the notice of the election program pursuant to this Section in the Nepal Gazette. (4) The notice pursuant to the election program published by the Commission under sub-section (1) shall be published by the concerned Election Officer at the office of the Election Officer. Chapter-3 Election Officer, Polling Officer and Other Employees 7. Appointment of Election Officer: The Commission shall, in consultation with the Judicial Council, appoint a District Judge as Election Officer for each Province to perform or cause to be performed the work required to be done in the election in accordance with the Constitution, this Act and federal law. 8. Duties, functions and powers of Election Officer: (1) It shall be the duty of the Election Officer to conduct or cause to be conducted the election in a clean, impartial and free manner in the Province assigned to him/her, subject to the direction of the Commission. (2) The Election Officer may delegate his/her powers to employees deployed for election work as required.

Provided that the power to scrutinize nomination papers, to accept or reject nomination papers, and to declare the final result of counting shall not be delegated.

(3) The Election Officer may deploy or engage employees of the Government of Nepal and the Provincial Government for any election-related work.

(4) Other duties, functions and powers of the Election Officer shall be as prescribed. 9. Appointment of Assistant Election Officer and other employees: (1) The Election Officer may appoint Assistant Election Officers and other employees in such number as specified by the Commission.

(2) It shall be the duty of the Assistant Election Officer and other employees to perform election-related work under the direct direction and control of the Election Officer. 10. Appointment of Polling Officer: (1) The Election Officer may appoint employees of the Government of Nepal and the Provincial Government as Polling Officers.

(2) The Polling Officer appointed pursuant to sub-section (1) shall cause all work relating to polling to be completed in a clean, impartial and free manner as specified by this Act and the rules made under this Act or the orders issued thereunder.

(3) Other duties, functions and powers of the Polling Officer shall be as prescribed. Chapter-4

Candidates and Nomination Papers

11. Qualification of candidate: A person must fulfill the following qualifications to be a candidate in an election:-

(a) a citizen of Nepal,

(b) having completed the age of thirty-five years,

Amended by Some Nepal Acts Amendment Act, 2075.(c) having his/her name included in the voter list of a Rural Municipality or Municipality,

(d) not being disqualified by any federal law,

(e) not holding any office of profit. Explanation: For the purpose of this clause, "office of profit" means any

office, other than a political office filled by election or nomination, which receives remuneration or financial benefits from the government fund. 12.

Disqualification of candidate: Notwithstanding anything contained elsewhere in this Act, the following persons shall be considered disqualified from being a candidate in an election:- (a) a person not having the qualification pursuant to Section 11, (b) a person holding a salaried office in the Government of Nepal, Provincial Government or local level, or in an institution owned or controlled by the Government of Nepal, Provincial Government or local level, or receiving a grant from the Government of Nepal, Provincial Government or local level, (c) a person who has been punished under the prevailing law relating to elections and a period of two years has not elapsed from the date of completion of such punishment, (d) a person who has been punished for corruption, rape, human trafficking and transportation, sale, distribution or export or import of narcotic drugs, money laundering, passport misuse, kidnapping, or any other criminal offence involving moral turpitude, or who has been punished with life imprisonment, imprisonment for twenty years or more for any offence, and such judgment has become final, (e) a person who has been punished with imprisonment for an organised crime offence, or with imprisonment for less than twenty years for an offence relating to culpable homicide, and a period of six years has not elapsed from the date of completion of such punishment, (f) a person who has been punished with imprisonment for an offence relating to caste discrimination and untouchability, witchcraft, or polygamy, and a period of three years has not elapsed from the date of completion of such punishment, (g) a person who has been punished with imprisonment for five years or more for an offence other than those mentioned in clauses (d) and (e), and a period of six years has not elapsed from the date of completion of such punishment, (h) a person who is on the blacklist under the prevailing law, for the duration of that period, (i) a person who is in imprisonment, for the duration of the imprisonment, (j) a person whose mental balance is not sound. 13.

Authority to decide on disqualification of candidate: (1) If, after the nomination for candidacy for membership has been filed but before the election result is declared, any person believes that any candidate is or has become disqualified, a complaint may be filed before the Commission through the concerned Election Officer, along with clear evidence. (2) If a complaint is received pursuant to sub-section (1), the Election Officer may give a notice of seven days to such candidate to submit an explanation in that regard. (3) After receiving the explanation pursuant to sub-section (2), or if no explanation is received within the time limit, the Election Officer shall, stating the same, forward the complaint filed under sub-section (1) and related documents to the Commission as soon as possible. (4) After receiving the documents including the complaint pursuant to sub-section (3), the Commission may, if it deems necessary, inquire with the concerned candidate or other body or official, or call for further evidence on the matter. (5) The Commission shall, after examining the documents including the complaint received from the Election Officer pursuant to sub-section (3), decide on the disqualification of the candidate within seven days from the date of receipt of the complaint. (6) The procedure to be followed while deciding on the disqualification of a candidate under sub-section (5) shall be as determined by the Commission. (7) Notwithstanding anything contained elsewhere in this Section, the work and proceedings of such election shall not be affected merely because the Commission has not made a decision under this Section regarding the disqualification of any candidate. 14. Vacation of seat: (1) If a person elected to the post of member is held by the Court to be disqualified pursuant to Section 12, he/she shall vacate such post. (2) The Commission shall inform the concerned person of the vacation of the seat under sub-section (1). (3) Provisions relating to filing a complaint in the Court regarding the disqualification of a person elected to the post of any member shall be as prescribed. (4) The Commission shall publish a notice of the vacation of the seat by a member under sub-section (1) in the Nepal Gazette. 15. Computation of age of candidate: In calculating the age of a candidate to be a candidate in an election, the candidate must have

completed the age of thirty-five years as of the date of filing the nomination paper. 16. Nomination of candidate: (1) A person not disqualified pursuant to Section 12 may be a candidate in an election, or such person may be nominated as a candidate. (2) While filing candidacy or nomination pursuant to sub-section (1), there shall be one proposer and one seconder.

Such proposer and seconder shall be persons whose names are registered in the voter list pursuant to sub-section (3) of Section 4. (3) If any person is proposed as a candidate pursuant to sub-section (2), such candidate shall write his/her consent on the nomination paper and also affix his/her signature or thumb impression. (4) In the case of a candidate put forward by a party, a formal letter given by the officer pursuant to sub-section (1) of Section 17 on behalf of such party shall be submitted along with the nomination paper. (5) A copy of such formal letter given to the candidate by the officer pursuant to sub-section (4) shall also be sent to the Election Officer. (6) If a nomination paper is filed without complying with the procedure under sub-section (4), such candidate shall not be recognized as the candidate of that party. (7) A person may be nominated by a maximum of two nomination papers for an election. 17. Provision relating to officer authorized to provide formal letter of nomination: (1) A party shall designate an office bearer of its central executive committee or equivalent committee to provide the formal letter of nomination of a candidate on its behalf. (2) The name, surname, post and specimen signature of the office bearer pursuant to sub-section (1) shall be certified by an office bearer of the central executive committee or equivalent committee of such party designated by that committee, and shall be provided to the Commission within the period prescribed by the Commission before the date of filing nomination papers for candidates. (3) The Commission shall forward the details including the specimen signature under sub-section (2) to the concerned Election Officer before the date fixed for registration of nomination papers. 18.

Registration of candidate nomination: (1) The nomination paper of a candidate shall be submitted to the concerned Election Officer by the candidate himself/herself or by his/her agent, proposer or seconder. (2) The concerned Election Officer shall examine whether the nomination paper submitted under sub-section (1) is in proper form according to this Act, and if it is in proper form, register it and issue a receipt thereof to the person bringing the nomination paper for registration. (3) If any person brings a nomination paper for registration that lacks a proposer or seconder, has a duplicate proposer or seconder, does not have a receipt of deposit under Section 63, lacks the signature or thumb impression of the proposer, seconder or the person intending to be a candidate, or is otherwise not in proper form, the Election Officer shall correct the defects as far as possible by having them rectified and register such nomination paper. If any person wishes to have the nomination paper registered without rectifying the defects in this manner, the Election Officer shall note the same on the nomination paper and give notice thereof to the person registering the nomination paper. (4) Other documents to be submitted along with the nomination paper shall be as prescribed. (5) After the time for registration of nomination papers has expired, the Election Officer shall publish a list of candidates whose nomination papers have been registered at the date, time and place specified in the notice of the election program. 19. Right to object: If any person wishes to claim or object regarding the qualification of any candidate whose nomination paper has been registered under Section 18, the candidate or his/her agent may file a complaint before the Election Officer at the date, time and place specified in the notice of the election program. 20. Scrutiny of nomination papers: (1) While scrutinizing the nomination papers registered under Section 18, the candidate, his/her agent, proposer or seconder shall be present at the date, time and place specified in the notice of the election program. (2) The Election Officer shall scrutinize the nomination papers of all candidates in the presence of the persons mentioned in sub-section (1).

Provided that, even if any candidate, his/her proposer, seconder or agent required to be present is not

present, this sub-section shall not be deemed to prevent the scrutiny of the nomination paper and the making of a decision on the matter according to law.

(3) The Election Officer may adjourn the proceedings relating to the scrutiny of nomination papers in any of the following circumstances, and if the proceedings relating to the scrutiny of nomination papers are so adjourned, information thereof shall be given to the Commission:-

(a) if a riot or other abnormal situation arises at the place during the time of scrutiny of nomination papers,

(b) if a situation beyond control arises due to a natural disaster.

(4) If the proceedings relating to the scrutiny of nomination papers are adjourned pursuant to sub-section (3), the Election Officer shall, on the basis of any direction from the Commission if any, fix a time and place and scrutinize the nomination papers as soon as possible.

(5) Other provisions relating to the scrutiny of nomination papers shall be as prescribed. 21. Grounds for rejection of nomination paper: A nomination paper shall be rejected in any of the following circumstances:-

(a) if the candidate does not possess the qualification under the Constitution and this Act,

(b) if the consent of the person intending to be a candidate is absent, or if the signature or thumb impression of such person or his/her proposer and seconder is absent or forged,

(c) if the nomination paper is not registered within the time fixed under sub-section (2) of Section 6,

(d) if the nomination paper is not filed in accordance with Sections 16, 17 and 18,

(e) if the deposit under Section 63 is not made,

(f) if any other procedure under this Act is not complied with. 22. List of candidates: After the scrutiny of nomination papers is completed, the Election Officer shall prepare a list of candidates whose nomination papers are in proper form according to law and publish one copy thereof at his/her office. 23.

Withdrawal of name: (1) If any candidate wishes to withdraw his/her name from the list of candidates, he/she may do so by giving written notice to the Election Officer within the time fixed for withdrawal of names under sub-section (2) of Section 6. (2) The notice of withdrawal of name under sub-section (1) shall be submitted by the candidate himself/herself or by his/her agent. (3) After a notice of withdrawal of name has been submitted to the Election Officer under sub-section (1), such notice shall not be cancelled or withdrawn. (4) The office bearer designated under sub-section (1) of Section 17 to provide the formal letter of nomination of a candidate on behalf of a party may, within the time fixed under sub-section (2) of Section 6, send a letter to the Election Officer withdrawing the name of any candidate fielded on behalf of such party. (5) If the Election Officer is satisfied regarding the notice submitted under sub-section (1), (2) or (4), he/she shall remove the name of such candidate from the list of candidates. The Election Officer shall immediately publish a notice of such removal at his/her office. 24. Final list of candidates: (1) After the time fixed for withdrawal of names under sub-section (2) of Section 6 has expired, the Election Officer shall prepare a list of the remaining candidates, publish one copy immediately at his/her office, and send one copy to the Commission. (2) In the list under sub-section (1), the names of candidates shall be written according to the Nepali alphabetical order, and if any candidate is nominated on behalf of a party, the name of such party shall also be mentioned in his/her address. 25. Unopposed election: If, at the time of publishing the final list of candidates under Section 24, the number of candidates remaining for any position to be elected under Section 3 is equal to or less than the number of persons to be elected, the Election Officer shall declare such candidate elected unopposed as

prescribed. 26.

Election symbol: (1) The election symbols to be distributed to candidates for the election shall be determined by the Commission. (2) The election symbol determined under sub-section (1) shall be provided to the candidate as prescribed. (3) The election symbol provided under sub-section (2) shall not be used by anyone other than such candidate. (4) While providing an election symbol to a candidate under this Section, the candidate of a party shall be given the election symbol determined by the Commission for that party for the purpose of election. If the Commission feels that any mistake has occurred or there is a difference in providing election symbols in such manner, the Commission may change such symbol. (5) If a candidate leaves his/her party or joins another party after the election symbol has been provided to the candidate of a party by the Commission, the election symbol provided to him/her shall not change. If such candidate is elected and the concerned party files a complaint with evidence to the Commission, his/her membership shall be cancelled. (6) For an independent candidate, the Election Officer shall provide an election symbol from the group of election symbols determined by the Commission in the manner prescribed. 27.

If a candidate dies: (1) If a candidate nominated by a party dies, before or after the publication of the final list of candidates under Section 24, and written notice thereof is received from the election agent, the concerned party or any other person, and the Election Officer is satisfied of the fact, the Election Officer shall immediately suspend other programs related to such election and give information thereof to the Commission. (2) The Election Officer shall post a notice of the suspension of the election-related program under sub-section (1) at his/her office for the information of other candidates as well. (3) If information under sub-section (1) is received and the death occurred before the publication of the final list of candidates, the Commission shall re-determine the program relating to the candidate nomination and other program under this Chapter so that the voting program of such election is not affected; if the death occurred after the publication of the final list of candidates, the Commission shall re-determine the date of voting and other programs under this Chapter and send it to the Election Officer. (4) Notwithstanding anything contained in sub-section (3), if, due to the death of a candidate and the suspension of the election program, the period for completing the work as mentioned in the election program under sub-section (2) of Section 6 exceeds fifteen days, another program shall not be published again, and the election program shall be determined so that the work relating to candidate nomination is completed within the period of that same program without hindering the voting work. (5) If the election program is suspended under sub-section (1), the candidate who previously submitted a nomination paper shall not have to file a nomination paper again, and only the party whose candidate has died may nominate another candidate again. 28. Identity card of candidate: The Election Officer shall give an identity card as specified by the Commission to a candidate remaining in the final list under Section 24. Chapter-5 Agents of Candidates 29.

Election agent: (1) If a candidate appoints any person as his/her election agent for the election, written notice thereof shall be given to the Election Officer. (2) The election agent appointed under sub-section (1) may be removed at any time by the candidate and another election agent may be appointed, and written notice of the appointment of another election agent shall immediately be given to the concerned Election Officer. (3) It shall be the duty of the election agent appointed under sub-section (1) to perform the work stated to be done by the election agent in this Act and the rules made under this Act. (4) The qualification of an election agent shall be as prescribed. 30. Polling agent and counting agent: (1) A candidate or election agent may appoint a polling agent as prescribed for each polling station, and written notice of the appointment of such polling agent shall be given to the Polling Officer and the Election Officer. (2) A candidate or election agent may appoint a counting agent as prescribed to be present at the counting place, and written notice of the

appointment of such counting agent shall be given to the Election Officer. (3) The polling agent or counting agent appointed under sub-section (1) or (2) may be removed at any time by the candidate or election agent and another polling agent or counting agent may be appointed. (4) If another polling agent is appointed under sub-section (3), the Polling Officer shall be informed immediately; if another counting agent is appointed, the Election Officer shall be informed immediately. (5) It shall be the duty of the polling agent and counting agent appointed under sub-section (1) or (2) to perform the work stated to be done by the polling agent and counting agent under this Act and the rules made under this Act. (6) The number and qualification of polling agents and counting agents shall be as prescribed. 31. If candidate or any agent is absent: If an election agent, polling agent or counting agent is not appointed as per this Act and the rules made under this Act, or if the candidate or any of his/her agents is not present when required to be present, or if any of them fails to perform the work required to be done, the work of voting, counting or declaration of election result shall not be halted for that reason alone, and such work shall be deemed to have been done according to law.

Chapter-6

Polling Station and Voting

32. Polling station: (1) For the election, a polling station shall be located at a place designated by the Commission.

(2) Other provisions relating to the polling station shall be as prescribed. 33. Ballot paper: (1) The Commission shall arrange for ballot papers bearing the election symbols of candidates for the election.

(2) While including the election symbols of candidates on the ballot paper under sub-section (1), they shall be included in the following order:-

(a) the election symbol of a candidate of a party representing in the House of Representatives immediately before the election, based on the number of votes obtained by that party under the proportional election system in the election of that House of Representatives,

(b) in the case of a party not representing in the House of Representatives under clause (a), the election symbol of a candidate of that party based on the order of registration with the Commission for election purposes,

(c) the election symbol of an independent candidate based on the alphabetical order of the candidate's name.

(3) If two or more parties representing in the House of Representatives are unified or merged, for the purpose of clause (a) of sub-section (2), the total number of votes obtained by such parties before such unification or merger shall be deemed to be the votes obtained by the currently existing party.

(4) Other provisions relating to the ballot paper shall be as prescribed. 34. Ballot box and other election materials: (1) For voting, the ballot box and election materials as specified by the Commission shall be used.

(2) Other provisions relating to the management of ballot boxes and other election materials shall be as prescribed. 35. Time of voting: The date of voting and the time for voting shall be as specified in the notice under sub-section (2) of Section 6. 36. Voting: (1) A voter must vote by secret ballot at the polling station assigned to him/her.

(2) A voter must, taking a ballot paper as prescribed for voting, cast his/her vote in the ballot box kept for that purpose.

(3) A voter shall not vote in the name of any person other than his/her own name.

(4) No voter may vote more than once in the same election or at more than one polling station.

(5) No voter shall, during the voting period, disclose to anyone by any means whom he/she has voted for. 37.

Voting procedure: (1) The Polling Officer shall, completing the procedure as prescribed, give the prescribed ballot paper to a voter present at the polling station for voting. (2) Before giving a ballot paper to a voter, the Polling Officer shall note the prescribed particulars in the voter list and give the ballot paper as prescribed. (3) A voter must mark the ballot paper with the prescribed stamp or mark secretly and cast his/her vote. (4) While voting under this Act, a voter must, in the room containing the election symbol of the candidate he/she chooses, affix the stamp or mark under sub-section (3) for as many candidates as are to be selected, and drop the ballot paper into the ballot box as prescribed. (5) Notwithstanding anything contained elsewhere in this Act, if an electronic device is used for the purpose of voting, the voter must vote by the electronic device as prescribed. 38. Right to object if a person comes to vote by impersonation: (1) If any voter or person comes to obtain a ballot paper to vote in the name of another voter by impersonation, a candidate, his/her agent or any voter of the same polling station may, by depositing one hundred rupees as security, object before the Polling Officer. (2) If an objection is made under sub-section (1), the Polling Officer shall inquire into necessary matters and decide immediately, and such objection and decision shall be immediately recorded in the decision book as specified by the Commission. (3) If the objection under sub-section (1) is upheld, the Polling Officer shall refund the security amount to the concerned person, and if the objection is found to be false, such security amount shall be forfeited. (4) If the objection under sub-section (1) is upheld, the Polling Officer shall fine the person coming to vote by impersonation in accordance with the federal law relating to election offences and punishment. 39.

Voting may be suspended in special circumstances: (1) If, at a polling station, due to any abnormal situation or failure to operate an electronic device for any reason, or due to disturbance, natural calamity or any cause beyond his/her control, the Polling Officer appointed at that polling station is satisfied that voting work cannot be conducted, he/she may immediately suspend the voting work at that polling station. (2) If the Polling Officer suspends voting under sub-section (1), a notice thereof shall be published at that place and information shall be given immediately to the Election Officer. (3) The Election Officer shall immediately give information of the suspension of voting under sub-section (1) to the Commission. (4) After receiving information under sub-section (3), the Election Officer shall, unless the Commission directs otherwise, fix a new date and time for voting, publish a notice, and cause re-voting to be conducted. 40. Entry into polling station: (1) The Polling Officer shall not allow any person other than the following to enter the polling station:- (a) voters, (b) a candidate or one election agent or polling agent of the candidate, (c) observers permitted by the Commission, (d) persons permitted by the Commission, the Election Officer or the Polling Officer, (e) a child up to five years of age accompanying a voter, (f) a member of the same household accompanying a blind or physically disabled voter for assistance. (2) Notwithstanding anything contained in sub-section (1), the Polling Officer shall not allow, to enter the polling station, any person carrying any kind of weapon, other than security personnel deployed for the security of the polling station, or any person under the influence of an intoxicating substance. (3) After the expiry of the polling time, no voter other than a voter who has already entered the polling station and remains to vote shall be allowed to enter or remain in the polling station. 41. Disabled voter: If a blind, physically disabled voter, or a voter who for any other reason is unable to mark the vote himself/herself, requests permission to bring a member of his/her household to assist in marking the vote, or requests the Polling Officer to assist in marking the vote, and the Polling Officer finds it appropriate, he/she may, on the basis of identity proof, allow such household member to enter the place of marking the

vote with the voter, or the Polling Officer may mark the vote on the voter's ballot paper according to the voter's wish. 42.

Right to inspect: If any voter stays at the place of marking the vote for longer than a reasonable time, or if the Polling Officer has any suspicion, he/she may enter the place of marking the vote and inspect. 43.

Unauthorized occupation of polling station: (1) A polling station shall be deemed to have been unauthorizedly occupied in any of the following circumstances:- (a) if any person, by using force, intimidation or threat, takes possession of the polling station or the place fixed for voting, influences the voting work, allows only supporters of a particular candidate to vote, or prevents other voters from voting, (b) if any person threatens, intimidates, obstructs by blocking the way or path for voting, or prevents access or entry to the polling station or voting place to influence a voter to vote or not to vote for a candidate, (c) if any person prevents the Polling Officer or employee deployed to conduct the voting work from performing his/her duty, snatches ballot papers, ballot boxes or voting materials in his/her charge, or otherwise affects the voting work so that it cannot be conducted in an impartial and free manner in the normal way. (2) If a polling station is unauthorizedly occupied in any manner mentioned in sub-section (1), the Polling Officer shall immediately suspend voting and submit a report to the Election Officer, and the Election Officer shall immediately submit it to the Commission. (3) Upon receipt of a report under sub-section (2), the Commission, or if any direction is received from the Commission, the Election Officer may, according to the direction of the Commission, investigate the incident under sub-section (1), and on the basis of the report of such investigation, the Commission, or the Election Officer as per the Commission's direction, may cancel the voting at such polling station. (4) In a polling station where voting has been cancelled under sub-section (3), the Election Officer shall fix a new date and time for voting and immediately publish a notice thereof at such polling station as well. 44.

If ballot box is damaged or vandalized: (1) If a ballot box used for voting at any polling station is accidentally damaged, or deliberately vandalized and damaged, the Polling Officer shall immediately give a report of the incident to the concerned Election Officer. (2) If a report under sub-section (1) is received, or if a ballot box used for voting that has been handed over by the Polling Officer to the Election Officer is snatched in any manner, deliberately vandalized and damaged, or accidentally damaged, the Election Officer shall immediately cancel the voting at such polling station and submit a report thereof to the Commission. (3) In a polling station where voting has been cancelled under sub-section (2), the Election Officer shall fix a new date and time for voting and immediately publish a notice thereof at such polling station. 45. Sealing the ballot box: After the completion of voting, the Polling Officer shall 55. Recounting of Votes: (1) Before the counting of votes at a polling station is completed or the counted ballot papers are sealed, any candidate, his or her election agent or counting agent may submit a written application to the Election Officer forthwith, stating reasons, requesting a recount of some or all of the ballot papers. (2) Upon receipt of an application pursuant to sub-section (1), the Election Officer shall register such application forthwith and may conduct a recount if it appears necessary to do so. (3) If it appears that a recount is not necessary pursuant to sub-section (2), the Election Officer shall make a decision to that effect and shall, before the declaration of the election result, give notice of such decision to the candidate, his or her election agent or counting agent present at that place. 56. Vote Weight: The vote weight of a member of the Electoral College shall be as specified in Schedule-1. 57.

Declaration of Election Result: (1) The Election Officer shall separately count the votes given by the members of the Provincial Assembly and the votes given by the Chairperson and Vice-Chairperson of the Rural Municipality and the Mayor and Deputy Mayor of the Municipality, and determine the total number of valid

votes obtained by each candidate. (2) The total votes obtained by each candidate as per sub-section (1), consisting of the votes of members of the Provincial Assembly and the votes of the Chairperson and Vice-Chairperson of the Rural Municipality and the Mayor and Deputy Mayor of the Municipality, multiplied by the vote weight determined pursuant to Section 56, shall be deemed to be the total votes received by each candidate. (3) On the basis of the total votes determined pursuant to sub-section (2), the Election Officer shall declare the candidate securing the highest number of votes as the winner pursuant to Section 3, and publish the election result. 58. Decision by Lot in Case of Tie: If, after the completion of counting under this Act, the votes obtained by two or more candidates are equal and the elected candidate cannot be distinguished, the Election Officer shall decide by drawing lots among the candidates who have obtained an equal number of votes. The candidate selected by such lot shall be deemed to have received one additional vote. 59. Date of Election: The date on which the Election Officer publishes the election result pursuant to Section 57 shall be deemed to be the date of election of the concerned candidate. 60. Submission of Election Result: The Commission shall, within seven days of the declaration of the final election result, submit the entire result of such election to the President and publish the details of the elected candidate in the Nepal Gazette. Chapter 8 Miscellaneous Amended by the Act to Amend Some Nepal Acts, 2075.61. By-election: If the office of a member becomes vacant for any reason while his or her term has more than six months remaining, the Commission shall, on a date fixed by the Government of Nepal within thirty-five days of the occurrence of the vacancy, fill such vacant office for the remaining term by a by-election held in accordance with this Act, as per Section 3. 62.

Provision Relating to Tender Ballot: (1) If any person has obtained a ballot paper or cast a vote in the name of another voter, and it appears from evidence produced by a person who subsequently comes to vote that such person is the genuine voter, the Presiding Officer shall give a tender ballot to such voter. Where a tender ballot is so given, after the voter has recorded his or her vote on such ballot paper, such ballot paper shall not be placed in the ballot box but shall be kept in a separate envelope kept for that purpose. (2) The procedures for giving and keeping tender ballots and other related procedures under sub-section (1) shall be as prescribed. (3) When counting votes under this Act, the tender ballots kept in the separate envelope under sub-section (1) shall not be counted at that time. If an election petition is filed and the court determines that the tender ballots are required for deciding such petition, the court may count such tender ballots as well. 63. Deposit to be Made: (1) A candidate must deposit a sum of ten thousand rupees in the office of the concerned Election Officer to be a candidate in the election. (2) Notwithstanding anything contained in sub-section (1), in the case of a female, Dalit, minority community, or economically disadvantaged candidate, there shall be a fifty percent concession on such deposit amount. Explanation: For the purposes of this sub-section, "economically disadvantaged" means a person whose annual family income is less than fifty thousand rupees, as recommended by the concerned local level. (3) Where more than one nomination paper is filed on behalf of the same candidate in an election, a deposit for only one nomination shall suffice. (4) While making a deposit under sub-section (1), the candidate or party may deposit cash or submit a receipt of cash deposited in a bank. 64. Forfeiture of Deposit: (1) The deposit of a candidate who obtains less than ten percent of the total valid votes cast in the election shall be forfeited. Provided that this provision shall not apply in the case of a candidate who obtains less than ten percent of the valid votes and is elected. (2) Except in cases where the deposit is forfeited under sub-section (1), the deposit of other candidates and persons whose nomination papers were not accepted or who withdrew their names shall be returned within ninety days from the date of declaration of the election result by the concerned person. (3) If the deposit is not taken back within the period specified in sub-section (2), the amount of such deposit shall be deposited into the Consolidated Fund. 65.

Election Campaign Expenditure: (1) The limit on the amount a candidate may spend in an election shall be as prescribed by the Commission by publishing a notice in the Nepal Gazette. (2) The candidate or his or her election agent shall keep a record of all expenses incurred during the election period in the prescribed format as prescribed. Explanation: For the purposes of this sub-section, "election period" means the period from the date of registration of the candidate's nomination paper to the date of declaration of the result of such election. (3) The total expenditure incurred by any candidate in the election shall not exceed the expenditure limit prescribed under sub-section (1). (4) The candidate or his or her agent shall submit the statement of election expenses under sub-section (2) to the office designated by the Commission within thirty days from the date of declaration of the election result. The office receiving such expense statement shall forward it to the Commission. (5) A candidate who fails to submit the statement of election campaign expenditure within the prescribed time under this section shall be penalized by the Commission in accordance with the prevailing federal law relating to the Election Commission. 66. **Confidentiality of Election Documents or Records:** (1) Among the documents used in an election or records if voting was conducted through electronic devices, such documents or records as required for the purpose of counting shall be opened and inspected as necessary, and after the counting is completed, they shall be sealed and kept in the custody of the prescribed officer. (2) The sealed counterfoils of ballot papers under sub-section (1), the voter list used in voting, and the sealed envelopes, bags, sacks, or records containing valid and invalid ballot papers may be opened and inspected only by a court in the course of a petition filed under the prevailing law. (3) After having been opened and inspected under the order of the court as per sub-section (2), the court shall reseal such documents or records as they were. No authority or body other than the court shall have the right to open and inspect such sealed envelopes, bags, or sacks. (4) The documents or records mentioned in this section shall be kept safely for three months from the date of final disposal of the case if a case is filed, or from the expiry of the period for filing a petition if no case is filed. 67.

Breach of Confidentiality Prohibited: (1) Except as authorized by law, no employee deployed for election-related work, candidate, election agent, polling agent, counting agent, or any other person shall tell, write, or in any manner disclose or publish the vote recorded by a voter on a ballot paper or any other matter related thereto that has come or may come to their knowledge. (2) Notwithstanding anything contained in this Act or other prevailing law, in the course of any legal proceedings under this Act, no witness or person shall be asked for whom he or she voted or who voted for whom. 68. **Oath:** (1) A member shall take an oath in the format as per Schedule-2 before the person chairing the National Assembly before participating in a meeting of the National Assembly or any of its committees. Provided that a member under sub-article (5) of Article 92 of the Constitution shall take an oath before the President. (2) If any member wishes to take an oath in his or her mother tongue spoken in Nepal, such member shall translate the content of the oath under sub-section (1) into his or her mother tongue and provide a copy of such translation to the Federal Parliament Secretariat at least three days before participating in the first meeting of the National Assembly or any of its committees. (3) After taking an oath under this section, the member shall sign the copy of the oath taken and submit it to the person chairing the National Assembly. (4) If any member takes an oath in his or her mother tongue spoken in Nepal, he or she shall sign the copies of the oath in the Nepali language of official business and in the other Nepali mother tongue and submit them to the person chairing the National Assembly. (5) The Federal Parliament Secretariat shall keep a record of the oath taken by a member under this section. 69.

Power to Issue Orders and Give Directions: (1) In addition to matters specified in this Act and the Rules made under this Act, the Commission may, subject to this Act and the Rules made under this Act, issue necessary orders in relation to the election, and such orders shall be published in the Nepal Gazette. (2) The Commission may give necessary directions to the employees deployed for election work for the conduct of

elections. (3) It shall be the duty of the Government of Nepal, Provincial Government, local level, government offices and bodies, government, semi-government and non-government organizations and bodies, political parties, candidates, their agents, persons who publicize election activities, and employees deployed for election work, among others, to comply with the orders and directions issued by the Commission under this section. 70. Power to Seek Assistance: (1) The Election Officer, Presiding Officer, or the monitoring team, observer, or any other official deployed by the Commission for election work may seek the assistance of any government or security agency in the course of election work. (2) If assistance is requested under sub-section (1), it shall be the duty of all concerned to provide necessary assistance. 71. Power to Take Action: If any Election Officer acts contrary to the Constitution, law, directives, procedures, and directions given by the Commission, the Commission may cancel the appointment of such Election Officer and appoint another officer, or write to the concerned body for departmental action. 72. Power to Make Rules: The Commission may make necessary Rules for the implementation of this Act. 73. Power to Make and Implement Directives or Procedures: The Commission may, subject to this Act and the Rules made under this Act, make and implement necessary directives or procedures. 74. Repeal and Savings: (1) The National Assembly Member Election Ordinance, 2075 is hereby repealed. (2) All acts and proceedings done under the National Assembly Member Election Ordinance, 2075 shall be deemed to have been done under this Act. Schedule-1 (Relating to Section 56) Vote Weight of Members of Provincial Assembly and Chairperson and Vice-Chairperson of Rural Municipality and Mayor and Deputy Mayor of Municipality 1. Vote weight of a member of Provincial Assembly: - $\text{Total population (as per the latest national census)} \div 1000 \text{ Total number of Provincial Assembly members}$ Example: On the basis of the total population according to the census of 2068 B.S. $2,64,94,504 \div 1000$ 550 Vote weight determined: 48 2.

Vote weight of Chairperson and Vice-Chairperson of Rural Municipality and Mayor and Deputy Mayor of Municipality: - Amended by the Act to Amend Some Nepal Acts, 2075. $\text{Total population (as per the latest national census)} \div 1000 \text{ Total number of Rural Municipalities and Municipalities} \times 2$ Example: On the basis of the total population according to the census of 2068 B.S. and the current number of Rural Municipalities and Municipalities $2,64,94,504 \div 1000$ 753 $\times 2$ Vote weight determined: 18 Schedule-2 (Relating to sub-section (1) of Section 68) Format of Oath I, (full name of the concerned member) , do hereby solemnly affirm/swear in the name of God that, being completely loyal to the country and the people, and remaining fully faithful to the Constitution of Nepal which vests sovereignty and state authority in the Nepali people, I will discharge the duties of the office of member of the National Assembly sincerely, in accordance with the prevailing law, with the best interests of the country and the people, without fear, favor, prejudice, or ill will, and maintaining the confidentiality of the office. Date :- Signature :- Name, Surname :-